

Athens, 29-02-2024

No. Protocol: 682

DECISION 12/2024

The Hellenic Data Protection Authority (hereinafter referred to as the "Authority") convened at the invitation of its President for a meeting on Tuesday, 13-06-2023, at 10:00, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigorios Tsolias, as the rapporteur. Present, without voting rights, were Stefania Plota, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint No. G/IN/5612/07-09-2021, A (hereinafter referred to as the "complainant") appealed to the Authority against the company Google LLC (hereinafter referred to as "Google" or "the company") for the failure to satisfy the right to erasure (right to be forgotten) of results appearing in Google's search engine based on his name. Specifically, the complainant informed the company that there exists the No. ... Order of the Prosecutor of First Instance ..., which determined that he has no connection to the acts for which his relative was convicted -...- and that his name has been wrongly associated in online postings with this relative and their criminal conviction. The complainant states that he has submitted requests to the company on ..., ..., ..., and ..., exercising the right to be forgotten and requesting the deletion of links from the company's search results based on his name, as well as from platform X, which, as he states, belongs to the complained company, and that, although four (4) specific postings were deleted from Google's search engine, the corresponding postings were not deleted from the aforementioned platform. According to the complaint dated ... submitted by the complainant to the Data Protection Officer of the company, the justification dated ... from the company for the non-deletion of the following links, which were included in the request for deletion dated ..., was that they pertain to "public life," while the complainant claims that they include outdated data against him, as, while he is attributed with the commission of criminal offenses, none of the postings mention that the relevant complaint was archived and that there is no pending criminal prosecution against the complainant for the cases listed in the following links:

1. ...
2. ...
3. ...
4. ...
5. ...
6. ...
7. ...

Additionally, on ..., the complainant submitted a request for the deletion of results based on his name from the company's search engine for the following links for the same reason mentioned above, for which he has not received a response from the company, as he states:

8. ...
9. ...
10. ...
11. ...
12. ...

The Authority, in the context of examining the above complaint, summoned the companies Google LLC, as the operator of the Google search engine, and Google Hellas with document No. G/EXE/2810/07-12-2021, to provide their views on the allegations. The company Google LLC, in response to the above document, informed the Authority with document No. G/IN/292/14-01-2022 that the complainant submitted via an online form his requests with reference numbers ..., ..., ..., ..., ...,

..., ..., and ..., in which he requested the removal from the search results of the Google search engine based on his name of the links (URLs) mentioned in the above requests invoking the right to be forgotten. Google responded to the complainant, among other things, as follows: "[...] It appears that the information you want Google to remove relates to criminal offenses. We do not have any information or documents confirming that the specific criminal prosecutions mentioned in these URLs were resolved in your favor. Conversely, if you were convicted of this crime, we do not have any information or documents confirming the duration of the estimated sentence or whether other conditions related to the decision have been met. Without this confirmation, we are unable to fully assess your request regarding the removal of these URLs. Therefore, the URLs have not been removed at this time, as based on the information provided, they do not appear to be inaccurate, outdated, or incomplete. However, if you wish to provide this or any other supporting documentation that could help us assess your request, we could reconsider it, depending on the documentation we receive. You can send the removal request directly to the webmaster of the website [...]". The company noted in its response that the assessment of the complainant's requests under the right to be forgotten concludes that the deletion of the contested links is not permitted in the case at hand for the following reasons: the right to be forgotten, as regulated by Article 17 of Regulation (EU) 2016/679, has been defined under the Costeja decision and the Guidelines of the Article 29 Working Party, as the right of a person to cease the information related to them from being linked to the...

****Translation:****

His full name through the results list, which arises from a search conducted based on his full name, when, at that particular moment, the information "is inappropriate, is not or has ceased to be relevant to the relevant issue or is excessive in relation to the aforementioned purposes or the time that has elapsed" but in certain cases, a fair balance must be sought, particularly between the legitimate interest of potential interested users of the internet for access to this information and the fundamental rights of the data subject under Articles 7 and 8 of the Charter. The company highlights the criteria set forth as questions in the Guidelines of the Article 29 Working Party, namely "What role does the subject play in public life?", "Do the data concern the professional life of the subject?", "Are the data related to the professional life of the person excessive? Is the data subject still active in the same profession?", "Are the data accurate?", "Do the data concern criminal offenses?"

The company concludes that in the case at hand, the content of the links included in the complainant's requests refers exclusively to information related to his professional activity (the complainant is a publisher and entrepreneur) and specifically to his alleged involvement in related, possibly criminal, judicial cases. In particular, the contested publications refer to the offense ... allegedly committed by the complainant concerning the companies ..., ... and ..., to his alleged involvement in scandals in ... Y, to his reported attempt to "silence" ... F, to his alleged omissions to ..., as well as to complaints that have been submitted ... regarding his businesses. According to the company, the complainant does not invoke or prove in any way the inaccuracy of the contested information, while the Prosecutorial Order submitted by him is in no way related to the aforementioned information, nor does it prove that it is inaccurate or outdated, while the content of the contested links is recent and relevant, as in many cases it concerns publications from the year In light of the above, a legitimate public interest is established, according to the company, for access to this information and, therefore, the deletion of the relevant links is not permissible, based on the criteria set forth in the "Guidelines of the Article 29 Working Party." Finally, the company stated that, since the following links (URLs) lead users to websites whose content is not available, following the notification from the complainant, it will take the necessary actions to delete them from the results list that appears based on his full name:

- i.
...
- ii.
...
- iii.
...
- iv.

...
v.
...
vi.
...
vii.
...

Following the examination of the case file, the Authority with reference numbers Γ/ΕΞ/3007/23-11-2022 and Γ/ΕΞ/3005/23-11-2022 summoned the aforementioned companies and the complainant, respectively, as legally represented, to attend, via teleconference, the plenary session of the Authority on 29-11-2022, in order to discuss the complaint in question. In the aforementioned session, the request for postponement submitted by the complainant's attorney was discussed, which was accepted by the Plenary, and a new date for the Plenary session to discuss the complaint in question was set for 10-01-2023. In this session, the complainant's attorney Vasileios Sotiropoulos (AMDS ...) and on behalf of the company Google LLC, the attorneys Ioannis-Dionysios Filiotis (AMDS ...), Charikleia Daouti (AMDS ...), and Evangelia Tsirigoti (AMDS ...) were present and expressed their views. Before the end of the session, the complainant's attorney left, and subsequently, the complainant and the company submitted reference numbers Γ/ΕΙΣ/660/27-01-2023 and Γ/ΕΙΣ/702/30-01-2023 memoranda, respectively, within the relevant deadline set by the President during the session.

The complainant in the post-hearing memorandum submitted to the Authority stated that the data controller accepted certain deletion requests and indeed removed the links from the Google search engine, while denying the deletion of others. Furthermore, he mentioned that the data controller refused to delete the actual content of the personal data in those posts where the content was hosted by blogs on platform X, which also belongs to Google, meaning that they were removed as search results but remained as content on the blogs of the same data controller, while it should have also informed platform X about the deletion of said data, and the data controller never responded to this request. The complainant stated that out of all the links for which he requested deletion from the data controller as search results in the Google search engine based on his name, the following still remain as search results:

1. ...
2. ...
3. ...
4. ...
5. ...
6. ...

The company, in the memorandum submitted to the Authority after the hearing, reiterates what it had mentioned in its pre-hearing memorandum regarding the complaint, as well as what it presented during the hearing process, arguing that there is a legitimate public interest in accessing the information, as it concerns the complainant in his professional capacity, which he continues to maintain, while the accuracy of this information is not disputed based on the evidence he provided, and that it is not obliged to delete the links mentioned in points 2-6 above—additionally claiming that the link in point 1 does not appear as a result in the search engine based on the complainant's name, while the following link also continues to appear as a result:

...

The company further states that the complainant did not dispute their accuracy and the only document he submitted is the no. ... Prosecutorial Order, which is in no way related to the right to be forgotten and the information mentioned in the publications concerning ... and ..., as it was issued following a complaint by B against, among others, the complainant, who was acquitted of the offenses ..., dismissing the factual circumstances that connected him to these acts. The company also emphasizes that the invoked Prosecutorial Order is not sufficient to substantiate his right to be forgotten concerning

the disputed publications, as the latter relate to different factual circumstances that may constitute different criminal acts, such as

Regarding the complaint dated ... by the complainant to the DPO of Google LLC, which the complainant considered as the data controller of the data posted on the online service Blogger, a hosting service that allows users to create personalized blogs with content of their choice, the company states that this service is provided by Google Ireland Ltd, based in Ireland, but neither Google LLC nor Google Ireland is responsible for the personal data that users of the service may post using the Blogger service. Google Ireland is a hosting provider for the data collected in the service under the meaning of Article 14 of the European Directive 2000/31/EC. Regardless of the above, regarding the substance of the aforementioned complaint dated ..., the company argues that it is without merit and unfounded, as the complainant had requested that Google LLC remove the following posts from the Blogger service claiming that, since Google LLC deleted the above links from the search engine, Google LLC must also remove the corresponding publications from the Blogger service and inform the data controllers of the following posts to do the same:

- i ...
- ii ...
- iii ...
- iv ...

However, as the company claims, the aforementioned posts i, ii, and iv have already been deleted from the Blogger service by the users of the service who posted them (Blogger users), and Google LLC removed the above links from the search engine because the corresponding publications had been withdrawn by their publishers (users of the Blogger service), and the only post that currently appears is the following:

...

The said post includes an image of the complainant with ... in a public space and mentions his name; it is neither illegal nor inaccurate and therefore cannot be deleted by its publisher. Although it was initially withdrawn by its publisher and Google LLC had removed it from the search engine, it was reposted but still does not appear in the search engine results. Furthermore, the company states that, as accepted by the decision No. 3672/17-12-2013 of the Supreme Court of Cassation of Italy, interpreting and applying the E-Commerce Directive, the person who posts (Blogger user) is the data controller and solely responsible for ensuring the legality of the information, while Google Ireland has no obligation to verify the information and bears no liability for any illegal nature of it, provided that it is not aware of the illegal nature and that there is no court decision recognizing its illegal nature. In fact, according to Article 14, paragraph 1 of Presidential Decree 131/2003, which incorporated the above Directive, internet service providers "do not have [...] a general obligation to monitor the information they transmit or store, nor a general obligation to actively seek facts or circumstances indicating illegal activities." Google Ireland, as the provider of the Blogger service in the EEA and Switzerland, as stated by the company, hosts Blogger posts on its servers based on the instructions of its Blogger service users, without determining the means or purposes of processing any of the personal data that the users of the service may decide to include in their Blogger posts, and the only data controllers of the data posted on the Blogger service are the users of the service, in accordance with the cited decision PPA 457/2016 (NOMOS Legal Database).

The Authority, after examining all the elements of the file and what emerged from the hearing before it and the submissions of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.
2. Since Google LLC, based in the United States of America, with its letter No.

G/EIS/10060/14-12-2018, informed the Authority that, although Google Ireland will be the data controller for the user data collected and processed when users interact with Google's services—including data collected through the Google search engine, where users choose to store activity data or search history in their accounts—Google LLC will continue to be the data controller of the indexed content (index) of the Google search engine and manage the deletion process within the framework of the right to be forgotten. Therefore, in the case under consideration, the purpose and means of processing for the satisfaction of the right to deletion (to be forgotten) as per Article 17 of the GDPR are fully determined by the company Google LLC, as it states, whose establishment is located outside the European Union. Consequently, although this specific activity concerns data subjects located within the territory of the Union, since the company Google LLC does not have a main establishment in the Union for the under

****Examination of Activity****

1. The "one-stop-shop" mechanism established by the GDPR does not apply to the examination of the activity, and therefore, according to the provisions of Articles 55(1), 2(1), and 3(2) of the GDPR and Article 13(1)(g) of Law 4624/2019, the Authority has the jurisdiction to address the complaint of A regarding the violation of the right to erasure.

2. Since the activity of Google Hellas/Athens (GOOGLE HELLAS Internet Applications Single Member Limited Liability Company) is the provision of marketing services to Google Ireland Ltd, the complaint regarding the rejection of the request for the deletion of links in the context of satisfying the right to be forgotten is examined solely with respect to Google LLC as the data controller of the indexed content (index) of the Google search engine.

3. According to Article 4(7), the "data controller" is defined as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data," as this provision has been interpreted in detail by the CJEU and the Council of State.

4. According to Article 17(1) of the GDPR, "the data subject has the right to request the erasure of personal data concerning them without undue delay and the data controller is obliged to erase personal data without undue delay, if one of the following grounds applies: a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed, [...], c) the data subject objects to the processing pursuant to Article 21(1) and there are no overriding legitimate grounds for the processing or the data subject objects to the processing pursuant to Article 21(2), d) the personal data have been unlawfully processed, [...]." Paragraph 3 of the same article states that "paragraphs 1 and 2 do not apply to the extent that processing is necessary: a) for the exercise of the right of freedom of expression and information [...]."

5. According to the aforementioned Article 17 of the GDPR, as it has been interpreted in substance by the Guidelines 5/2019 of the EDPB, the data subject has the right to request the erasure of personal data concerning them without undue delay and the data controller is obliged to erase personal data without undue delay, if one of the grounds mentioned in Article 17 of the GDPR applies. The EDPB emphasizes that, in cases where the request for erasure is made for the first reason, namely when the data subject requests the deletion of content from search results, when the personal data of the data subject are no longer necessary in relation to the purposes, the search engine must ensure a balance between the protection of privacy and the rights of Internet users in accessing information. In particular, it should be assessed whether, over time, the personal data have become outdated or have not been updated. Furthermore, the EDPB states that if the request for erasure is made for the third reason, namely when the data subject objects to the processing, then the GDPR provides stronger guarantees to data subjects than Directive 95/46, because the right to object under the GDPR does not limit the grounds on which data subjects can request erasure under Article 17(1) of the GDPR. The data subject may object to the processing "on grounds relating to their particular situation," without needing to demonstrate "overriding legitimate grounds," as was required under Directive 95/46. The GDPR shifts the burden of proof and provides a presumption in favor of the data subject, obliging the data controller instead.

1 Guidelines 5/2019 of the European Data Protection Board on "the criteria that govern the right to be forgotten under the GDPR in the context of search engines."

2 See Guidelines 5/2019, op. cit., para. 19.

3 See Guidelines 5/2019, op. cit., para. 27.

****Processing**** (in this case, Google) must prove the compelling and legitimate reasons that make the processing absolutely necessary (Article 21 paragraph 1 GDPR). Consequently, when a search engine provider receives a deletion request based on the specific circumstances of the data subject, it is now obliged to delete personal data, in accordance with Article 17 paragraph 1 point c of the GDPR, unless it can demonstrate that there are "compelling and legitimate reasons" for including the specific search result, which, in conjunction with Article 21 paragraph 1, constitute "compelling and legitimate reasons (...) which override the interests, rights, and freedoms of the data subject."

7. Because, according to the case law of the Court of Justice of the European Union, the data subject has the right to cease the information related to them from being linked to their name through the results list that arises following a search conducted based on the name of a natural person, and furthermore, such a search may result in users being able to obtain, through the results list, a systematic overview of the information available online concerning that person, which provides users the ability to form a more or less detailed profile of the data subject, which pertains to the private life of the data subject.

8. Because, moreover, according to the case law of the Court of Justice of the European Union, it is incumbent upon the person requesting the deletion of links, in the case of alleged inaccuracy of the classified content, to prove the manifest inaccuracy of the information contained in the said content by providing the evidence that can reasonably be expected to be available to them, in light of the circumstances of the specific case, in order to demonstrate this manifest inaccuracy.

9. Because further, according to the case law of the Court of Justice of the European Union, "[...] although the rights protected by Articles 7 and 8 of the Charter of Fundamental Rights of the European Union generally prevail over the legitimate interest of potential internet users in accessing the information in question, this balancing may depend on the critical circumstances of each case, in particular on the nature of the information in question and on its sensitive character for the private life of the data subject, as well as on the public interest in having access to that information, an interest that may vary depending, among other things, on the role played by that subject in public life [judgments of 13 May 2014, Google Spain and Google, C-131/12, EU:C:2014:317, paragraph 81, and of 24 September 2019, GC et al. (Deletion of links to sensitive data), C-136/17, EU:C:2019:773, paragraph 66]. Specifically, when the data subject plays a role in public life, they must exhibit a greater degree of tolerance, since they inevitably and knowingly expose themselves to public scrutiny."

10. Because according to the case law of the Authority, the reasons for submitting a request for deletion of a link to a search engine service provider, such as Google, must be substantiated.

11. Because the online service Blogger is a hosting service that allows its users to create personalized blogs with content of their choice, to edit and delete that content. In this case, it does not appear that the complained company is the responsible processor of posts by third parties contained in the Blogger service (with the domain name "X"). According to the Guidelines...

Lines 5/2019 of the EDPB "do not require search engine providers who have received a deletion request from a data subject to inform the third party that published the said information on the internet."

12. Because in the case under examination, it is maintained, according to the memorandum submitted to the Authority by the complainant after the hearing, as search results based on his name in the Google search engine, the following links:

i.

...

ii.

...

iii.

...

iv.

...

v.

...

vi.

...

while the other links mentioned in the complaint under examination no longer appear as results based on the complainant's name in the Google search engine, as also resulted from the Authority's search on 12-06-2023.

13.

Because the links numbered i, ii, iv, v, and vi mentioned in paragraph 12 contain publications from the years 2008, 2011, and 2012. The said information is considered outdated, as it is older than ten (10) years and furthermore concerns issues that no longer interest the reading public, thus rendering the examination of other criteria for their deletion unnecessary.

14.

Because the link numbered iii mentioned in paragraph 12 is a reproduction of a publication from the website "Ψ," which has already been removed, following a relevant extrajudicial declaration from the complainant.

15.

Because in the case under examination, the request for deletion of the articles concerning the complainant and contained in the links mentioned above in paragraph 12, with the domain name "X," which are posted on the Blogger service, has been improperly and unlawfully submitted to the complained company, which does not constitute the data controller of the said posts.

Based on the above, the Authority unanimously decides that the complained company, as the data controller, must be given the order mentioned in the operative part to comply with the complainant's request for deletion of the links that appear as results in the search engine, while the request for deletion of the articles concerning the complainant and contained in the contested links must be rejected.

FOR THESE REASONS

The Authority:

Orders, in application of the provision of Article 58(2)(c) of Regulation (EU) 2016/679, the company Google LLC, as the data controller, to proceed immediately with the removal-deletion of the links mentioned above in paragraph 12, as results based on the complainant's name in the Google search engine.

Rejects the complainant's request for deletion of the articles concerning him and contained in the links mentioned above in paragraph 12.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou